

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DAVID CONYERS,

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. JOSEPH BORRERO, Shield No. 28310 (Tax Id. No. 9644401), Individually and in his Official Capacity, LT. TIMOTHY BROVAKOS (Tax Id. No. 943025), Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates Kings County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
January 28, 2022

COHEN & FITCH LLP
Attorneys for Plaintiff
110 E. 59th St, Suite 3200
New York, N.Y. 10022
(212) 374-9115

TO:

GEORGIA PESTANA
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

DET. JOSEPH BORRERO, Shield No. 28310 (Tax Id. No. 9644401)
60th Precinct
2951 West 8th Street
Brooklyn, NY, 11224-3615

LT. TIMOTHY BROVAKOS (Tax Id. No. 943025)

71st Precinct

421 Empire Blvd

Brooklyn, NY 11225

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DAVID CONYERS,

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. JOSEPH BORRERO, Shield No. 28310 (Tax Id. No. 9644401), Individually and in his Official Capacity, LT. TIMOTHY BROVAKOS (Tax Id. No. 943025), Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

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VERIFIED COMPLAINT

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

Plaintiff DAVID CONYERS by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully allege as follows:

FACTS

1. Plaintiff DAVID CONYERS is an African-American male and has been at all relevant times a resident of Kings County in the State of New York and/or Chester County in the State of South Carolina.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned the individually named defendants, DET. JOSEPH BORRERO, Shield No. 28310 (Tax Id. No. 9644401), LT. TIMOTHY BROVAKOS (Tax Id. No. 943025), and POLICE OFFICERS “JOHN DOE” #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about November 15, 2020 plaintiff DAVID CONYERS had a valid South Carolina drivers license and was lawfully in the vicinity of 2920 West 21st St., in the County of Kings, City, and State of New York.

9. At approximately 10:48 p.m., on the above-mentioned date and in the vicinity of the above-mentioned location, despite the fact plaintiff had not committed any traffic and/or

equipment violations, nor any other crimes and/or violations of the law, plaintiff was seized by defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10.

10. Thereafter, defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 approached plaintiff's vehicle and requested plaintiff provide them with his license and registration. Plaintiff complied and provided the requested documents, including a valid South Carolina drivers license.

11. Subsequently, defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 returned to their police vehicle, where they remained for several minutes, and then re-approached plaintiff's vehicle and advised plaintiff that they were going to search his vehicle.

12. At no time on November 15, 2020, did defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 possess probable cause and/or reasonable suspicion to search plaintiff's vehicle, person, and/or effects nor did they obtain voluntary consent from him to do so.

13. Subsequently, defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 directed plaintiff to exit his vehicle. Plaintiff complied and exited said vehicle.

14. After plaintiff had exited his vehicle defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 began to search same. However, no contraband was recovered as a result of this search nor did plaintiff possess any contraband and/or have custody or control over same.

15. Additionally, defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 searched plaintiff's person and effects. However, no contraband was recovered as a result of this search nor did plaintiff possess any contraband and/or have custody or control over same.

16. At no time on November 15, 2020, did defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff's vehicle, person, and/or effects.

17. Subsequently, while plaintiff was on the ground, defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10, kicked plaintiff in the face and then tased plaintiff's person without any reason and/or justification, causing him to suffer pain and injuries.

18. Thereafter, defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 placed plaintiff under arrest by handcuffing his arms tightly behind his back.

19. At no time on November 15, 2020, did defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 possess probable cause to arrest plaintiff.

20. At no time on November 15, 2020, did defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

21. Subsequently, plaintiff was transported to Coney Island Hospital for medical treatment related to being kicked and tased. Plaintiff remained at the hospital for several hours, during which time he was handcuffed to a gurney.

22. In addition, while plaintiff was being transported the hospital by ambulance, defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 subjected plaintiff to an invasive search by pulling his pants down, however, no contraband was found as a result of same. Further, once plaintiff arrived at the hospital and was handcuffed to a gurney, defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 subjected plaintiff to a second invasive search, however, no contraband was found as a result of same.

23. Thereafter, defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 placed plaintiff in an NYPD vehicle and transported him to a nearby police precinct.

24. Upon arrival at said precinct, plaintiff was searched again, fingerprinted, photographed, confined against his will in a holding cell for several hours, and charged with crimes by defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10.

25. Specifically, defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 charged plaintiff with Assault in the Second Degree, Violation of Posted No Standing Rules, Assault in the Third Degree, Obstructing Governmental Administration, Resisting Arrest, Criminal Possession of a Controlled Substance in the Seventh Degree, and Unlicensed Operator. However, at no time did defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 possess reasonable suspicion and/or probable cause to seize, search, and/or arrest plaintiff, nor did plaintiff possess any contraband or have custody or control over same.

26. After being detained at the aforementioned precinct for several hours plaintiff was transported to Central Booking where he was searched, moved from cell to cell, and further detained until he was released following arraignment.

27. In connection with plaintiffs’ arrest, defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the Kings County District Attorney’s Office. Thereafter, defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff’s arrest. Specifically, defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 falsely stated, *inter alia*, that plaintiff was unlawfully parked, that they had observed plaintiff to be in possession of a quantity of Suboxone in that they recovered same from plaintiff’s vehicle, that plaintiff refused to place

his hands behind his back upon defendants' orders, that plaintiff struggled with defendants' and struck defendant BROVAKOS in the face with his elbow causing defendant BROVAKOS to sustain injuries, and that plaintiff did not possess a State of New York Drivers license.

28. As a result of the foregoing, plaintiff spent approximately two (2) days in custody before he was released following arraignment. Thereafter, plaintiff was maliciously prosecuted and forced to make approximately five (5) additional court appearance over the course of approximately ten (10) months.

29. On or about July 19, 2021, the Assault in the Second Degree charge against plaintiff was dismissed. Thereafter, on or about September 20, 2021, all of the remaining charges against plaintiff were dismissed in their entirety.

30. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, physical injuries and pain, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

31. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

32. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

33. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

34. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

35. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

36. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

38. As a result of the aforesaid conduct by defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

39. As a result of the foregoing, plaintiff's liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF ARISING
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

40. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

41. Defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 created false evidence against the plaintiff.

42. Defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney’s Office – namely, the defendants falsely informed prosecutors, *inter alia*, that plaintiff was unlawfully parked, that they had observed plaintiff to be in possession of a quantity of Suboxone in that they recovered same from plaintiff’s vehicle, that plaintiff refused to place his hands behind his back upon defendants’ orders, that plaintiff struggled with defendants’ and struck defendant BROVAKOS in the face with his elbow causing defendant BROVAKOS to sustain injuries, and that plaintiff did not possess a State of New York Drivers license.

43. Defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

44. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

45. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

46. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

47. Defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 misrepresented and falsified evidence before the Kings County District Attorney.

48. Defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 did not make a complete and full statement of facts to the District Attorney.

49. Defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 withheld exculpatory evidence from the District Attorney.

50. Defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

51. Defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.

52. Defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 acted with malice in initiating criminal proceedings against plaintiff.

53. Defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

54. Defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 lacked probable cause to continue criminal proceedings against plaintiff.

55. Defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.

56. Defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

57. Specifically, defendants’ BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff’s arrest.

58. Notwithstanding the perjurious and fraudulent conduct of defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10, the criminal proceedings were terminated in plaintiff’s favor on or about September 20, 2021.

59. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

60. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

61. The level of force employed by defendants – upon information and belief, BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 – was objectively unreasonable and in violation of the constitutional rights of the plaintiff.

62. As a result of the foregoing, plaintiff sustained, *inter alia*, bodily injuries which required medical treatment, including, but not limited to, taser injury, asthma attack/wheezing, tachychardia, shortness of breath, swelling, abrasion(s), laceration(s), and pain.

SIXTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

63. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

64. Defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence by the use of excessive force and by the misrepresentation and falsification of evidence regarding the circumstances surrounding plaintiff’s arrest throughout all phases of the criminal proceedings.

65. Defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.

66. As a result of the defendants’ failure to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence, plaintiff sustained, *inter alia*, physical and emotional injuries, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SEVENTH CLAIM FOR RELIEF
UNLAWFUL STRIP SEARCH UNDER 42 U.S.C. § 1983

67. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein

68. Plaintiff was invasively strip-searched by defendants BORRERO, BROVAKOS, and/or “JOHN DOE” #1-10 without an individualized reasonable suspicion that plaintiff was

concealing contraband based on the particular characteristics of the plaintiff and/or the circumstances of his arrest.

69. As a result of the aforesaid conduct by defendants BORRERO, BROVAKOS, and/or "JOHN DOE" #1-10 plaintiff's persons was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe plaintiff secreted contraband, evidence, or had a weapon and/or controlled substances and/or marijuana inside a body cavity warranting such a search, in violation of his constitutional rights as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

70. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

EIGHTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

71. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

72. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

73. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,

- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. handcuffing all hospitalized prisoners for the entirety of their hospitalization regardless of their risk of flight or safety risk to others; and,
- E. utilizing excessive force in effectuating arrests; and,
- F. keeping arrestees handcuffed during hospitalization even when they pose no risk of flight or danger to the safety of others; and,
- G. failing to intercede to prevent violations of plaintiff's constitutional rights; and,
- H. strip searching individuals without an individualized reasonable suspicion that they are concealing weapons, drugs, and/or contraband based on the particular characteristics of the individual and/or the circumstances of the arrest; and,
- I. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- J. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

74. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiff.

75. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

76. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

77. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

78. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

79. The acts complained of deprived the plaintiff of his rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiff respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York
January 28, 2022

BY: _____/S_____
ILYSSA FUCHS
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
Attorneys for Plaintiff
110 E. 59th St., Suite 3200
New York, N.Y. 10022
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff DAVID CONYERS in the within entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
January 28, 2022

_____/S_____
ILYSSA S. FUCHS